

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

DAWNSTON SUNDAR,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. ADAM
DUMELLE; NYPD SGT PAUL SCOCCA; NYPD LT.
MORAN; NYPD P.O. JOHN/JANE DOES # 1-10;
the individual defendant(s) sued
individually and in their official
capacities,

Defendants.

----- X

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiffs' attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
NOVEMBER 8, 2017



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorney for Plaintiffs
65 Broadway 715
New York, NY 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD P.O. DANIEL MIVZESKY
NYPD P.O. JOHN/JANE DOES #1-10
79th Precinct
263 Tompkins Ave,
Brooklyn, NY 11208

SUMMONS:

Index No: _____

Date Filed: _____

Basis of Venue: Occurrence of
incident: Brooklyn, New York

Jury Trial Demanded

SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff DAWNSTON SUNDAR, by and through her counsel
Adams & Commissiong LLP, upon information and belief, alleges as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which plaintiffs seek relief for the violation of
their rights secured by the laws of the State of New York; New
York State Constitution; 42 U.S.C. §§ 1983 and 1988; and the
Fourth, Fifth, and Fourteenth Amendments to the United States
Constitution. Plaintiffs' claims arise from an incident that
arose on or about August 11, 2016. During the incident, the
City of New York, and members of the New York City Police
Department ("NYPD") subjected plaintiffs to, among other things,

VERIFIED COMPLAINT

Index No: _____

Date Filed: _____

Basis of Venue: Occurrence
of incident: Brooklyn, New
York

unlawful search and seizure; false arrest; unreasonable force; failure to intervene; assault and battery; negligence; negligence supervision and training of unfit employees; failure to intervene; and implementation and continuation of an unlawful municipal policy, practice, and custom; and respondeat superior liability. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

2. Within 90 days of the incidents alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County.

PARTIES

6. Plaintiff DAWNSTON SUNDAR is a resident of the State of New York, Kings County.

7. The plaintiff is a dark skinned Guyanese Male American and at the time of the incident.

8. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

9. At all times alleged herein, defendants NYPD P.O. ADAM DUMELLE; NYPD SGT PAUL SCOCCA; NYPD LT. MORAN; and P.O. JOHN/JANE DOES # 1-10 were New York City Police Officers employed with the 79th Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

11. On or about August 11, 2016, at approximately 7:00 am at and in the vicinity of 125 Nostrand Avenue, Brooklyn, New York, and Sandford and Myrtle Avenue several police officers operating from the 79th precinct, including upon information and belief, defendants NYPD P.O. ADAM DUMELLE; NYPD SGT PAUL SCOCCA; NYPD LT. MORAN and John/Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

12. On August 11, 2016, at approximately 7:00 a.m., at and in the vicinity of 125 Nostrand Avenue, Brooklyn, New York, and Sandford and Myrtle Avenue several police officers operating from the 79th precinct, including upon information and belief, defendants NYPD P.O. ADAM DUMELLE; NYPD SGT PAUL SCOCCA; NYPD LT. MORAN and John/Jane Does # 1-10, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime unlawfully entered 125 Nostrand Avenue Apt 5D, Brooklyn, New York.

13. The defendants, including defendants NYPD P.O. NYPD P.O. ADAM DUMELLE; NYPD SGT PAUL SCOCCA; NYPD LT. MORAN and John/Jane Does # 1-10 broke into 125 Nostrand Avenue Apt 5D, Brooklyn, New York.

14. If the defendant officers had a search warrant, it was issued upon the basis of extremely unreliable information, the unreliability of which was withheld from the issuing magistrate.

15. If the defendant officers had a search warrant, they obtained it by failing to properly supervise and verify the reliability of an informant against NYPD policy and procedures to ensure the reliability of the confidential informant and the confidential informant's information before obtaining the warrant.

16. If the defendant officers had a search warrant, they were negligent in the execution of that warrant as the defendant officers negligently and incompetently went into the wrong apartment.

17. If the defendant officers had a search warrant, they were negligent and incompetent in obtaining the warrant, by negligently and incompetently providing the issuing magistrate the wrong address.

18. Upon information and belief, one of the officers called the plaintiff at work and threatened to arrest his mother, if he did not turn himself in.

19. Plaintiff called his mother and an attorney, and told his mother he was going to come get her to take her to meet with the attorney.

20. Plaintiff left work, and drove to pick up his mother.

21. Plaintiff was in his car near Sanford Street and Myrtle Avenue, waiting for his mother to get in the car.

22. The defendant officers approached plaintiff's car, grabbed him, threw him to the ground and placed excessively tight handcuffs on plaintiff.

23. The officers then arrested plaintiff and took him to the 79th precinct where his arrest was processed.

24. Plaintiff was then taken to Brooklyn Central Booking.

25. Once in the 79th precinct, the officers acting in concert and pursuant to a conspiracy, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed various crimes.

26. However, because there was no basis to prosecute plaintiff let alone arrest plaintiff, on February 8, 2017, the case was dismissed and sealed.

27. The individual defendants acted in concert in committing the above-described illegal acts toward plaintiff.

28. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

29. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

30. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his/her rights.

31. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

32. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

33. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

34. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

35. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(FALSE ARREST UNDER STATE LAW)

36. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

37. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

38. Accordingly, defendants are liable to plaintiff for false arrest under New York State law.

THIRD CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

39. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

40. Defendants unlawfully searched plaintiff's residence without cause, a warrant, or consent.

41. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

FOURTH CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)

42. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

43. Defendants unlawfully stopped and searched plaintiff's residence without cause, a warrant, or consent.

44. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

45. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

46. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

47. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

48. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

49. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

50. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

51. Among other things as described above, defendants' search and seizure, battery, false arrest, and excessive use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts.

52. Accordingly, defendants are liable to plaintiff under New York State law for assault.

SEVENTH CLAIM**(BATTERY)**

53. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

54. Among other things as described above, defendants' search and seizure, false arrest, and excessive use of force against plaintiff were illegal physical contacts.

55. Accordingly, defendants are liable to plaintiff under New York State law for battery.

EIGHTH CLAIM**(FAILURE TO INTERVENE)**

56. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

57. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

58. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

NINTH CLAIM**(NEGLIGENCE)**

59. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

60. Defendants are liable to plaintiff because defendants owed plaintiff a cognizable duty of care as a matter of law, and breached that duty.

TENTH CLAIM

**(NEGLIGENT SUPERVISION, HIRING, MONITORING, TRAINING, AND
RETENTION OF UNFIT EMPLOYEES)**

61. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

62. Defendant City of New York is liable to plaintiff because the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of Defendant City of New York, and the NYPD, its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained its Police Officers.

ELEVENTH CLAIM

(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)

63. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

64. That by virtue of the occurrence and defendants, individually and/or by their agents, servants and/or employees,

negligently and/or intentionally inflicted emotional harm upon plaintiff.

65. The defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

66. The defendants breached a duty owed to plaintiff that either unreasonably endangered plaintiff's physical safety, or caused plaintiff to fear for his/her own safety.

TWELTH CLAIM

(RESPONDEAT SUPERIOR)

67. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

68. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff, including assaulting, and battering plaintiff, and negligently searching her home.

69. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

THIRTEENTH CLAIM

(MONELL CLAIM)

70. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

71. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

72. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) unlawfully stopping and searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using unreasonable force on individuals; and (5) fabricating evidence against innocent persons.

73. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

74. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately

investigate prior complaints filed against the individual defendants.

75. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

76. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

77. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison. In 2011, Brooklyn

South narcotics officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

78. Additionally, the existence of the aforesaid unconstitutional customs and policies of profiling minorities, may be inferred from an analysis of the NYPD conducted by the New York Civil Liberties Union ("NYCLU"). The NYCLU's analysis revealed that more than 2 million innocent New Yorkers were subjected to police stops and street interrogations from 2004 through 2011, and that black and Latino communities continue to be the overwhelming target of these tactics. Nearly nine out of 10 stopped-and-frisked New Yorkers have been completely innocent, according to the NYPD's own reports.

79. In August 2009, Proffer Levine released a report entitled The Epidemic of Pot Arrests in New York City, which stated: Perhaps most appalling is who the police are arresting for marijuana possession. United States government studies have consistently found that young whites use marijuana at higher rates than do young blacks or Latinos. But the NYPD has long arrested young blacks and Latinos for pot possession at much higher rates than whites. In 2008, blacks were about 26% of New York City's population, but over 54% of the people arrested for pot possession. Latinos were about 27% of New Yorkers, but 33% of the pot arrestees. Whites were over 35% of the City's population, but less than 10% of the people arrested for possessing marijuana. In 2008, police arrested Latinos for pot possession at four times the rate of whites, and blacks at seven times the rate of whites.

80. Furthermore, documented civilian complaints about officer misconduct show that African Americans are the most likely targets of abuse, but their complaints are largely ignored. According to the City of New York's Civil Complaint Review Board's ("CCRB") Status Report, dated December and January 2010, in 2010 African Americans were overrepresented as alleged victims of police misconduct. Although making up only 23% of New York City's population, they are 58.5% of the alleged

victims in CCRB complaints. On the other hand, whites and Asians were a disproportionately low percentage of alleged victims.

81. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

82. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

83. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

WHEREFORE, plaintiff demands, damages in an amount which exceeds the jurisdiction of all lower Courts otherwise having jurisdiction, a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;

- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
November 8, 2017

ADAMS & COMMISSIONG LLP,
Attorney for Plaintiffs
65 Broadway Suite 715
New York, New York 10006
212-430-6590
martin@amcmlaw.com

By:


MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DAWNSTON SUNDAR,

VERIFICATION

Plaintiff,

Index No: _____

-against-

Date Filed: _____

THE CITY OF NEW YORK; NYPD P.O. ADAM
DUMELLE; NYPD SGT PAUL SCOCCA; NYPD LT.
MORAN; NYPD P.O. JOHN/JANE DOES # 1-10;
the individual defendant(s) sued
individually and in their official
capacities,

Defendants.

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STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

Martin E. Adams, Esq, an attorney-at-law, duly admitted to
practice law in the State of New York, hereby affirms pursuant to the
C.P.L.R. and subscribing as true under the penalties of perjury as
follows:

That the Affirmant is a member of the law firm Adams &
Commissiong LLP, the attorneys of record for the plaintiff in the
above entitled action.

That the Affirmant has read the foregoing complaint and knows the
contents thereof; that the same is true to his knowledge, except as to
the matters stated to be alleged upon information and belief, and that
as to those matters he believes them to be true.

That the reason why this verification is made by Affirmant
instead of the plaintiff is because the plaintiff does not reside
within the County in which the firm of Adams & Commissiong LLP
maintain their office.

The grounds of Affirmant's belief as to all matters in the
complaint not stated to be upon his knowledge are based upon
conversations with plaintiff, and a review of records related to this
action.

DATED: New York, New York
November 8, 2017



MARTIN E. ADAMS, ESQ